Panama generics project: overview and what we need from the factory

Shared with all partners, including Rutul Patel (Zywie Worldwide). Prepared by the Panama partners, 9 October 2026. All facts below come from public Panamanian sources listed at the end; nothing here is a commitment or a quote.

1. Purpose and status

We are evaluating a Panamanian company that would import generic medicines made by the factory and sell them to Panama's public health system. Before anyone incorporates or spends money, both sides need the same facts: how the buyers work, what registration requires, and what data and documents only the factory can provide. This document puts all of that in one place. **Section 5 is the part for the factory's export and regulatory teams.**

Current status: the Panama side has mapped legal, registration and tax costs. Warehouse, freight and insurance quotes are waiting for the factory data in section 5. Before incorporating, the Panama partners will also obtain a legal opinion on public-procurement eligibility and confirm with the regulator how the warehouse will be licensed.

2. How Panama's public sector buys medicines

Topic	Rule	Source
Buyers	The Social Security Fund (CSS) and the Ministry of Health (MINSA), plus hospitals and boards that buy smaller lots	[1][2]
Main channel	The CSS runs large single-price tenders (LPU). The current one covers 15 months, from 11 February 2026 to 11 May 2027; contracts are at a fixed unit price with a guaranteed minimum purchase of 50%	[3][4] [11]
Other channels	MINSA reverse auctions for fixed quantities; small purchases (up to B/.70,000 per order for medicines); emergency purchases for products on the critical-shortage list	[1][2][5] [6]
Who wins	The lowest price that complies with every requirement	[3]
Registration	A Panamanian sanitary registration and a distributor licence are required when the offer is submitted; they cannot be fixed afterwards	[3]
Manufacturer's letter	A manufacturer's joint-liability letter, apostilled, for each tender	[3]
Packaging	Printed at the factory with the tender number (and "Property of MINSA" in MINSA auctions); relabelling or over-labelling is not accepted	[3][7]
Shelf life	Expiry as set in each product's technical sheet; if the sheet is silent, 18 months of shelf life at delivery. Imports need at least 6 months to expiry on arrival	[3][8]
Bonds	CSS tenders: bid bond of 10% of the offer for 180 working days (required whenever the tender's total reference value exceeds B/.70,000, as the LPU does) and performance bond of 30% of the contract. MINSA auctions: performance bond of 20%, no bid bond	[1][3][7]
Payment	90 days after the invoice is accepted and endorsed by the Comptroller; counting those steps, we plan on about 150 days from delivery	[4]
Liquid medicines	Oral liquids containing glycerin, sorbitol or propylene glycol need a certificate showing no ethylene or diethylene glycol for every imported batch, issued by a laboratory in the country of origin or a Panamanian reference laboratory, and authenticated (topical products with ethyl alcohol need a methanol certificate)	[8]

Currency: the balboa (B/.) trades one to one with the US dollar.

3. Recent public award prices for the first products

The first products were chosen because Panama does not require bioequivalence studies for them and they are bought regularly. Award prices from the current CSS tender (public record) [9]:

Product	Presentation	Award price (B/. per unit)	Winning product's origin
Paracetamol	500 mg tablet	0.010	India
Paracetamol	120-160 mg/5 ml syrup, 120 ml bottle	0.59	Panama
Amoxicillin + clavulanic acid	500/125 mg tablet	0.179	Portugal
Amoxicillin + clavulanic acid	400/57 mg/5 ml suspension, 100 ml	1.98	Portugal
Ceftriaxone	1 g vial (I.V.)	0.239	China
Cefotaxime	1 g vial	0.259	China
Albendazole	400 mg/10 ml suspension	1.81	Guatemala
Mebendazole	100 mg tablet	0.13	Panama
Nystatin	100,000 IU/ml suspension	3.18	El Salvador
Hydrocortisone	1% cream, 15 g tube	0.555	India
Mometasone (high-potency corticosteroid line)	0.1% cream, 15 g tube	1.02	Chile

These are delivered prices in Panama: they already include freight, import clearance, storage, bonds, local distribution and the distributor's margin. The MINSA bought paracetamol syrup at B/.0.40 a bottle in its 2026 auction [5].

4. Licensing and registration path

Step	What it involves	Time (legal limit or our planning estimate)
Company and licence	Panamanian company; distributor licence from the National Directorate of Pharmacy and Drugs (DNFD), with a pharmacist in charge and a licensed warehouse	About 3 months (estimate)
Registration dossier	One file per product, filed with the DNFD	Ready when the factory's documents arrive
Laboratory analysis	Local quality-control analysis of samples by the reference laboratory before registration (India is not on the WHO list that gives Panama's fast route)	Legal limits: 60 working days for the laboratory and 20 for the DNFD
Abbreviated route	No local analysis if the product is registered and sold in Argentina, Brazil, Chile, Colombia, Cuba or Mexico	Shorter; please tell us if any product qualifies
Validity	Five years, with two post-registration analyses in that period	—
Supplier registration	National register of bidders and CSS supplier registration	30 working days (legal limit)

Indian certificates: since 15 August 2025, COPP and WHO-GMP certificates are issued online through ONDLS, and only for products with a valid manufacturing licence [10].

5. What we need from the factory

5.1 Regulatory package, per product

Document	Use
CPP (WHO format) issued through ONDLS, apostilled, with the legal name and address of the manufacturing plant	Registration
Current WHO-GMP certificate of the plant and the manufacturing licence for the product	Registration and the tender's manufacturer letter
Technical file (CTD module 3): formula, specifications, validated analytical method, stability data for climatic zone IVb, certificates of analysis of three recent batches	Laboratory analysis and registration
Packaging artwork and Spanish leaflet; samples and reference standards for the laboratory	Registration and tenders
Free-sale certificate and any registrations in other countries	Registration and the abbreviated route
Authorisation letter to the Panamanian distributor, apostilled	Registration in the distributor's name
Ethylene and diethylene glycol certificate per batch, authenticated (oral liquids with glycerin, sorbitol or propylene glycol)	Every import

5.2 Commercial terms

- FOB price per product and presentation, at the minimum order quantity (MOQ) and at three times the MOQ.
- MOQ, approved shelf life, production lead time and the usual payment terms.
- Who invoices (the factory or Zywie), and the factory's usual position on registration costs with its Latin American distributors.

5.3 Logistics data, per product

The licensed warehouses, the freight forwarder and the cargo insurer cannot quote without these fields. The factory's standard export packing list and product data sheets usually cover them.

Field	Example of what is needed
Product, strength, presentation	Paracetamol 500 mg, blister of 10, box of 100
Units per inner box and per master carton	100 / 5,000
Master carton dimensions (cm) and gross weight (kg)	50 × 30 × 30; 12 kg
Cartons per pallet and pallet height	40; 1.6 m
Storage conditions	15-25 °C, protect from light
HS code	3004.xx
Shelf life from manufacture	24 or 36 months
Dangerous goods	Not dangerous (MSDS attached)
Value per master carton (FOB)	For the cargo insurance

The first shipment would be small (about 5 pallets, consolidated sea freight to Manzanillo), followed by about 3 to 5 pallets a month once sales start.

5.4 Quality

The usual supplier-qualification questionnaire, in writing: regulatory alerts, failed official quality tests or recalls of these products in the last three years and, if any, the root cause and the corrective action. Panamanian regulators can consult the Indian regulator's public lists, so it is best to have this in the file from the start.

6. Roles and next steps

Who	Next step
Factory, through Rutul Patel	Sections 5.1 to 5.4: logistics data first (it unblocks the quotes), then the regulatory package and the price list
Panama partners	Warehouse, freight, insurance and bond quotes with the factory data; legal opinion; regulator consultation; then a one-page term proposal
Both	A 30-minute call once the price list and the factory data are in, to agree the first products and the next steps

Sources

All consulted on 9 October 2026.

1. Law 419 of 2024 (medicines and public procurement of medicines): https://dnfd.minsa.gob.pa/sites/default/files/2025-08/Ley%20419%20de%201%20de%20febrero%20de%202024.pdf
2. Executive Decree 27 of 2024: https://www.minsa.gob.pa/sites/default/files/general/decreto_ejecutivo_27_de_10_de_mayo_de_2024.pdf
3. CSS tender LPU 01-2026, tender document: https://apisv3.panamacompra.gob.pa/procesos-contratacion-archivos/v2/download-file-2325E044-04B2-F011-80EA-0017A477FC74-ZA-101-1AZ-8120731-ZA-101-1AZ-8120731
4. CSS tender LPU 01-2026, signed contract (term and payment clause): https://apisv3.panamacompra.gob.pa/procesos-contratacion-archivos/v2/download-file-80BFF7A8-F859-F111-80EB-0017A477FC64-ZA-101-1AZ-10497116-ZA-101-1AZ-10497116
5. MINSA reverse auction SSR-000018 (paracetamol syrup), award report: https://apisv3.panamacompra.gob.pa/procesos-contratacion-archivos/v2/download-file-21F2213F-5354-F111-80EB-0017A477FC64-ZA-101-1AZ-10368555-ZA-101-1AZ-10368555
6. Executive Decree 16 of 9 March 2026 (critical-shortage list): https://www.minsa.gob.pa/normatividad/decreto-ejecutivo-ndeg-16-lunes-09-de-marzo-2026-que-declara-el-listado-conjunto-de
7. MINSA reverse auction tender document (2026): https://apisv3.panamacompra.gob.pa/procesos-contratacion-archivos/v2/download-file-41E2472E-8233-F111-80EA-0017A477FC74-ZA-101-1AZ-9715601-ZA-101-1AZ-9715601
8. Executive Decree 27 of 2024, articles 365 (glycol certificate) and 366 (minimum expiry at import): see source 2.
9. PanamaCompra, bid table of tender LPU 01-2026: https://apisv3.panamacompra.gob.pa/documentos-actos-publico/cuadroPropuesta/12/procesoVistaCuadroPropuesta/712894
10. CDSCO, COPP through ONDLS (circulars of 2025): https://cdsco.gov.in/opencms/resources/UploadCDSCOWeb/2018/UploadCircularFile/COPP%20Circular%20reminder.pdf
11. CSS tender LPU 01-2026, addendum 1 (minimum purchase of 50%): https://apisv3.panamacompra.gob.pa/procesos-contratacion-archivos/v2/download-file-4CED4947-6DC6-F011-80EA-0017A477FC74-ZA-101-1AZ-8120891-ZA-101-1AZ-8120891